

SENATE No. 242

The Commonwealth of Massachusetts

PRESENTED BY:

Dylan A. Fernandes

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to expand access to lactation care and services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/8/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>10/3/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>11/17/2025</i>

SENATE No. 242

By Mr. Fernandes, a petition (accompanied by bill, Senate, No. 242) of Dylan A. Fernandes for legislation to expand access to lactation care and services. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to expand access to lactation care and services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 11A of chapter 13 of the General Laws, as amended by Section 3 of
2 chapter 186 of the acts of 2024, is hereby amended by inserting after the words “lactation
3 consultants” the words “:- lactation counselors or advanced lactation consultants.

4 SECTION 2. Section 23A of chapter 112 of the General Laws is hereby amended by
5 inserting before the definition of “Athletic Trainer” the following definitions:-

6 “Academy of Lactation Policy and Practice” or “ALPP”, the division of the Healthy
7 Children Project, Inc. that confers the Certified Lactation Counselor credential, which
8 certification program is independently accredited by the ANSI National Accreditation Board, and
9 the Advanced Lactation Consultant and Advanced Nurse Lactation Consultant credentials.

10 “Advanced Lactation Consultant” or “ALC” and “Advanced Nurse Lactation Consultant”
11 or “ANLC”, a person who holds current certification from the Academy of Lactation Policy and

Practice as an advanced lactation consultant after demonstrating appropriate education, knowledge and experiences necessary to provide advanced lactation care and services.

“Advanced lactation consultant”, a person who provides lactation consulting and who is in good standing with the ALPP as an ALC or ANLC. Advanced lactation consultant shall not refer to an individual possessing the credential of an International Board Certified Lactation Consultant licensed as a licensed lactation consultant in accordance with Sections 23B and Sections 23J1/2(a).

SECTION 3A. Said section 23A of said chapter 112, is hereby further amended by inserting after the definition of “Board” the following definitions:-

“Certified Lactation Counselor “or “CLC”, a person who holds current certification from the Academy of Lactation Policy and Practice as a lactation counselor after demonstrating the appropriate education, knowledge, and experience necessary to provide lactation care and services.

“Lactation counselor”, a person who provides lactation counseling and who is in good standing with the ALPP as a CLC.

“Licensed lactation counselor”, a person who is duly licensed to practice lactation counseling in accordance with sections 23B and 23J1/2(b).

“Licensed advanced lactation consultant”, an ALC or ANLC who is duly licensed to practice lactation consulting in accordance with sections 23B and 23J1/2(b). Licensed advanced lactation consultant shall not refer to a licensed lactation consultant licensed under section 23J1/2(a).

SECTION 3B. The definition of “Licensed lactation consultant” in said Section 23A of said chapter 112, inserted by section 24 of chapter 186 of the acts of 2024, is hereby amended by inserting after the words “section 23B”:- and Section 23J1/2(a). The term licensed lactation consultant shall not refer to licensed advanced lactation consultants licensed under Section 23J/12(b).

SECTION 4. The definition of “Lactation consulting” in said section 23A of said chapter 112, inserted by section 24 of chapter 186 of the acts of 2024, is hereby amended by inserting after the words “Lactation consulting” the following words:- or lactation counseling.

SECTION 5. Section 23B of said chapter 112 is hereby amended by striking out the words “and lactation consultants”, inserted by section 25 of chapter 186 of the acts of 2024, and inserting in place thereof the following words:- , lactation consultants, lactation counselors and advanced lactation consultants.

SECTION 6. Section 23C of said chapter 112 is hereby amended by inserting after the words “lactation consultant”, inserted by section 27 of said chapter 186 the following words:- or lactation counselor or advanced lactation consultant.

SECTION 7. Said section 23C of said chapter 112 is hereby further amended by inserting after the words “lactation consultant”, inserted by section 28 of said chapter 186 , the following words:- or as a licensed lactation counselor or as a licensed advanced lactation consultant.

SECTION 8. Section 23D of said chapter 112 is hereby amended by inserting after the words “lactation consultant”, inserted by section 29 of said chapter 186, the following words:- or lactation counselor or advanced lactation consultant.

SECTION 9. Section 23E of said chapter 112 as most recently amended by chapter 186 of the Acts of 2024, is hereby further amended by striking out subsections (b) through (e), inclusive, and inserting in place thereof the following subsections:-

(b) any person employed as an athletic trainer, occupational therapist, occupational therapy assistant, physical therapist, physical therapist assistant, lactation consultant or lactation counselor by the Government of the United States or any agency of it, if such person provides occupational therapy, physical therapy, lactation consulting, or lactation counseling solely under the direction or control of the organization by which such person is employed, or

(c) any person pursuing a supervised course of study leading to a degree or certificate in athletic training, occupational therapy, physical therapy, lactation consulting, or lactation counseling at an accredited or approved educational program, if the person is designated by a title which clearly indicates such person's status as a student or trainee, or

(d) any person fulfilling the supervised field work experience requirements of this section, if the experience constitutes a part of the experience necessary to meet the requirement of that section, or

(e) any person performing athletic training services, occupational therapy services, physical therapy services, lactation consulting services, or lactation counseling services in the commonwealth if these services are performed for no more than 2 days in a calendar year in association with an athletic trainer, occupational therapist, physical therapist, lactation counselor, or advanced lactation consultant licensed under this section, if the person is licensed under the law of another state which has licensure requirements at least as stringent as the requirements of this section.

SECTION 10. Section 23J½ of said chapter 112, inserted by section 34 of chapter 186 of the acts of 2024, is hereby amended by striking out the words “An applicant” and inserting in place thereof the following words:- (a) An applicant.

SECTION 11. Said section 23J½ of said chapter 112 is hereby further amended by adding the following subsection:-

(b) An applicant for licensure as a lactation counselor or advanced lactation consultant shall:

(i) be not less than eighteen years of age;

(ii) have submitted a completed application upon a form and in such manner as the board prescribes, accompanied by applicable fees;

(iii) have met the education and clinical standards established by certified lactation counselors, advanced lactation consultant, or advanced nurse lactation consultant established by the Academy of Lactation Policy and Practice or successor organization;

(iv) have passed an examination adopted or administered by the board; provided, however, that the board may adopt a standardized national exam, including the examination required for certification by the Academy of Lactation Policy and Practice or a successor or equivalent entity; and

(v) have completed such other requirements as may be prescribed by the board.

SECTION 12. Clause (c) of section 23K of said chapter 112 is hereby amended by inserting after the words “lactation consulting”, inserted by section 35 of said chapter 186, the following words:- or lactation counseling.

SECTION 13. Clause (f) of section 23K of said chapter 112 is hereby amended by striking out the words “or physical therapy” and inserting in place thereof the following words:- physical therapy, lactation consulting or lactation counseling.

SECTION 14. Section 23L of said chapter 112 is hereby amended by striking out the words “or licensed lactation consultant”, inserted by section 36 of said chapter 186, and inserting in place thereof the following words:- licensed lactation consultant or lactation counselor.

SECTION 15. Subsection (a) of section 23P³/₄ of said chapter 112, inserted by section 37 of said chapter 186, is hereby amended by adding the following words after the words “ licensed lactation consultant” :- , licensed lactation counselor or licensed advanced lactation consultant.

SECTION 16. Subsection (b) of said section 23P³/₄ of said chapter 112, as so inserted, is hereby amended by inserting after the words “lactation consulting” the following words:- or lactation counseling.

SECTION 17. Said subsection (b) of section 23P³/₄ of said chapter 112, as so inserted, is hereby further amended by inserting after the words “licensed lactation consultant” the following words:- , "licensed lactation counselor" or "licensed advanced lactation consultant".

SECTION 18. Subsection (c) of section 23P³/₄ of said chapter 112, as so inserted, is hereby amended by inserting after the words “licensed lactation consultant” the following words:- , “licensed lactation counselor” or “licensed advanced lactation consultant”.